

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On October 7, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 02/13/2023. The complaint is directed against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, the respondent). The reasons on which the complaint is based are as follows: The appellant states that in September 2021, upon terminating her employment relationship with the respondent and in accordance with its internal policies, she was offered the possibility of acquiring, personally, the corporate device, which would become her property and therefore for exclusively personal use, from 09/20/2021; however, on 06/23/2022, the device became inactive, and when attempting to reconfigure it, a message appeared indicating that it was remotely managed by the respondent, requesting her corporate credentials to continue, thus preventing her access to it.

Upon contacting the respondent, she received a response attaching a document with the steps to follow to restore the device to factory settings, as a solution to reactivate it, with the loss of information that such action entails. She requested assistance via email to reactivate the device and the information contained in it, to which she received a response indicating that although typically, before acquisition by the employee, a complete wipe of the device is carried out, it was not done at the appropriate time (in September 2021, without prior notice, and without the possibility of making a backup on her part). At that time (June 2022), all her personal information had been wiped, after her personal device had been enrolled for more than 9 months in the corporate device management platform, without legal justification for this and in continued violation of the principles regarding personal data protection.

She adds that on 10/11/2022, she reported what happened to the Data Protection Officer of the respondent, receiving a response on 11/10/2022, confirming the impossibility of restoring the data.

She states that the actions of the respondent have resulted in the absolute loss of control over her data, as since the date of the device wipe (June 2022) it has remained inactive, with the respondent offering as the only alternative the restoration to factory settings—which implies formatting it—something she has not executed in the sole hope of recovering her personal information.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 03/15/2023, the aforementioned complaint was forwarded to the respondent, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 03/16/2023 as evidenced by the acknowledgment of receipt in the file.

On May 22, 2023, the respondent submitted a written response to the forwarded action and request for

information.

THIRD: On 05/13/2023, in accordance with Article 65.5 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: On 05/26/2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was notified to the appellant on 05/26/2023, as evidenced in the file.

FIFTH: On 06/26/2023, the respondent filed an optional appeal for reconsideration against the issued Resolution, expressing their disagreement with the contested resolution and requesting that the processing of the initial complaint continue.

On 03/05/2024, the appeal filed was sent to the respondent within the framework established in Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) to the

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effects of having made the allegations and submitted the documents and justifications deemed appropriate, which was carried out by means of a written submission dated 15/03/2024. The respondent stated that the claimant's intention to challenge the resolution to archive the complaint is merely to initiate a sanctioning procedure, without the claimant having standing to do so; the non-existence of an infringement and that during the course of their employment relationship, the claimant acquired a corporate device for work purposes, but subsequently, that device was acquired personally by the claimant, proceeding the respondent, as conferred by the Corporate Smartphone Project, to perform a wipe of said device; that in no case has the respondent acknowledged any responsibility regarding the deletion of the corporate data of the respondent and what it seeks is to make it believe that an infringement in data protection has been acknowledged simply by showing empathy with a person who was part of the Entity for many years.

SIXTH: On 31/05/2024, the Director of the Spanish Agency for Data Protection resolved to UPHOLD the appeal for reconsideration filed by the claimant against the Resolution issued on 26/05/2023, which agreed to archive the complaint against the respondent.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled obligation: Article 6.1 of the GDPR

The claimed facts arise from the opportunity for the claimant, personally and after the termination of their employment relationship with the respondent, to acquire a corporate device, which then became their property and therefore for exclusively personal use; however, as of 23/06/2022 (date of information deletion), the device ceased to be active, with the respondent offering as the only alternative the restoration to factory settings, which would result in the loss of all personal information contained in the aforementioned device, considering that the regulations on personal data protection

have been violated.

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, 7, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

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“7) ‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which the data subject, either by a statement or by a clear affirmative action, signifies agreement to the processing of personal data concerning them.”

It should be noted that the processing of data requires the existence of a legal basis that legitimizes it. In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation to which the data controller is subject, to protect vital interests of the data subject or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

According to the provisions of Article 6.1, there is no accredited legal basis among those contemplated in the aforementioned provision for the processing carried out.

In the present case, the responding party has stated that it was authorized to delete the data from the claimant's device at any time during the employment relationship between the parties or, as occurred in the case at hand, at the termination of said employment relationship, since the claimant was dismissed in April 2022 and the deletion of data from the device occurred in June of that year, which leads them to understand that the time lapse cannot be classified as a breach, much less as a violation of data protection regulations.

From the documentation provided, it is evident that there was an obligation for deletion by the responding party once the device was purchased, as indicated in the CORPORATE SMARTPHONE Project.

In the Conditions of the Project, Condition 2 states: "By joining the Project, and from the receipt of the device [BRAND/MODEL], the employee authorizes the Company to deduct from each monthly payroll the amount of: ###,### euros, for a duration of 24 months, as payment for: 'Use of mobile device.'"

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"high-end device." At the end of this period, the employee may exercise the option to purchase the device or proceed to return it to the Company, in which case there will be no cost to the employee for the return.

If, after the 24-month period, the employee opts to purchase the device, it will no longer be classified as a work tool. The Company commits to removing at that time any corporate applications, restrictions, or configurations of the device that were pre-installed to meet the Company's needs.

On the other hand, in Condition 3, Conditions of Use of the Corporate High-End Mobile Device, it is stated that

d) The Company reserves the right to delete, remotely or physically, all data contained in the corporate applications on the mobile communication device. The right to delete such information may be exercised by the Company at any time during the duration of the employee's contract with the Company, or thereafter, without prior notice from the Company.

Regarding this last condition, it should be noted that it should only apply to information contained in corporate applications and its use should be exceptional in cases where the employment relationship has long been concluded.

Furthermore, the email provided dated 07/19/2022 states:

From: B.B.B. <***EMAIL.1>

Date: Tue, July 19, 2022 at 3:13

Subject: Re: [External] Re: CONTACT PERSONS MDM SPAIN - URGENT

To: B.B.B. <***EMAIL.2>

"(...)

At the end of the co-payment program (due to the end of the program or departure from the entity), beneficiaries are offered the opportunity to purchase the device for personal use, for which it is necessary to perform a complete wipe of the device to remove applications and configurations. In your case, early departure was not notified, and this procedure was not carried out at the time of departure, which has been executed subsequently since the device continued to be registered on the Bank's platforms.

(...)"

Although the conditions of use of the corporate mobile device granted the Company the right to delete all data contained in the corporate applications on the device "at any time during the duration of the employee's contract with the Company, or thereafter," what this condition did not contain or grant is that the claimed party could delete data not included in those corporate applications that affected personal data and information of the claiming party contained in the acquired device.

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This subsequent execution caused the personal data and information included in the device to be deleted/suppressed, resulting in harm to the claiming party.

In accordance with the above, it is estimated that the claimed party would be responsible for the infringement of the GDPR: the violation of Article 6.1, an infringement classified in its Article 83.5.a).

III

The infringement attributed to the claimed party is classified in Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is punishable, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription that they are: “Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, those infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)”

IV

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for.”

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in Article 58, paragraph 2, letters a) to h) and j). When deciding on the imposition of an administrative fine and its amount in each individual case, the following will be duly taken into account:

a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and

mitigate any potential adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the data controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having a data protection officer when it is not mandatory.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in those cases where it is not mandatory."

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assumptions in which there are controversies between them and any interested party."

- In accordance with the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR for which the respondent is held responsible, the following circumstances are considered concurrent:

The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation; the facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the utmost severity; it is evident that the personal data of the complainant was deleted or removed from the acquired device without being authorized to carry out the aforementioned processing (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement. There is a serious lack of negligence in failing to comply with the procedures implemented by the entity itself in light of what is indicated in the Corporate Project; it could be understood that once the employment relationship has ended, the deletion of corporate applications would be appropriate but not the suppression of all information contained in the terminal, especially that of a private or personal nature. Also connected with the degree of diligence that the data controller is obliged to exercise in fulfilling the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into effect, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is imprudence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of

diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard” (Article 83.2.b) of the GDPR).

The investigated entity is one of the large companies within its sector with a sales volume of more than €1,000,000,000 according to AXESOR data (Article 83.2.k) of the GDPR).

In accordance with the above, the imposition of a sanction of €200,000 is considered appropriate.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as Instructor and C.C.C. as Secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the Inspection Services; all of which constitute the file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, and Article 58.2.b) of the GDPR, the sanction that may correspond for the violation of Article 6.1 of the GDPR would be 200,000 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this Agreement to BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, expressly indicating its right to a hearing in the procedure and granting it a period of TEN WORKING DAYS to submit allegations and propose any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that is appropriate to impose in this procedure. With the application of this reduction, the sanction would be established at 160,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 160,000 euros, and its payment will imply the termination of the procedure, without prejudice to any measures that may be imposed.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The payment

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Voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the total amount of the sanction would

be set at 120,000 euros. In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. For these purposes, in the event of opting for either of them, a formal communication of the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction must be sent to the Subdirector General for Data Inspection.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (160,000 euros or 120,000 euros), you must make the payment by depositing it into account no. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering. Additionally, you must send the proof of payment to the Subdirector General for Inspection along with the communication of the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction to continue with the procedure in accordance with the amount deposited. The procedure will have a maximum duration of twelve months from the date of the agreement to initiate or, where appropriate, from the draft agreement to initiate. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Authorized Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 31, 2024, the respondent has proceeded to pay the sanction in the amount of 120,000 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the time granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or appeal in the administrative pathway against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility,

the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the initiation notification.

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of the procedure and its effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202303478, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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